

the whole beneficial interest in the accumulations must by the terms of the settlement become vested within a life in being and twenty-one years, there is no perpetuity, for in this case the beneficiaries may immediately upon the vesting, and therefore within the allowed limits, put an end to the accumulation (a).

13. **Thellusson Act.** — The 39 & 40 Geo. 3, c. 98, commonly called the Thellusson Act, or Lord Loughborough's Act, has now further restricted the period of accumulation, by limiting it to "*the life or lives of any grantor or grantors, settlor or settlors; OR the term of twenty-one years from the death of the grantor, settlor, deviser, or testator; OR during the minority, or respective minorities of any person or persons who shall be living, or in ventre sa mere, at the time of the death of the grantor, deviser, or testator; OR during the minority, or respective minorities, of any person or persons who, under the uses or trusts of the deed, surrender, will, codicil, or other assurances directing such accumulations, would, for the time being, if of full age, be entitled unto rents, issues, and profits, or the interest, dividends, or annual produce so directed to be accumulated.*"

Act embraces both simple and compound accumulation. — The following points have been resolved upon the construction of this act? — 1. The statute embraces *simple* as well as *compound* accumulation. By the former is meant the collection of a principal sum by the mere addition of the annual proceeds, while the interest upon the accumulating fund either results undisposed of to the settlor or his representative, or passes to the residuary devisee or legatee. Compound accumulation is, where not only the income *de anno in annum* is added altogether, but the fund is further increased by the interest upon the income (b).

2. **Applies to case of suspended enjoyment, though the right to the enjoyment be vested.** — The act applies, though the

(a) *Oddie v Brown*, 4 De G. & Jon. 179; *Bateman v. Hotchkin*, 10 Beav. 426; *Bacon v. Proctor*, T. & R. 31; and see *Briggs v. Earl of Oxford*, 1 De G. M. & G. 363; *Williams v. Lewis*, 6 H. L. Cas. 1013.

(b) *Shaw v. Rhodes*, 1 M. & Cr. 135; S. C. by title of *Evans v. Hellier*, 5 Cl. and Fin. 114.